PHILLIP SHUMBA
versus
LAW SOCIETY OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 25 July 2025 and 21 January 2026

Opposed – Condonation

W.P. Mandinde, for Applicant
A.B Wenyimo, for Respondent

MAXWELL J: Applicant approached the court seeking condonation of the failure to file an application for review within the prescribed eight (8) weeks from the date of determination of the decision to be reviewed. On 11 May 2022 the Respondent's Executive Secretary notified the applicant of a determination which had been passed against him by the Respondent's council in a complaint which had been brought against him in terms of the Legal Practioners Act. Applicant indicated that he initially filed an application for review timeously but withdrew it to attend to issues brought to his attention. He now intends to file an application for review after attending to issues that had been brought to his attention. Such an application is obviously out of time and condonation is necessary.

In the Founding Affidavit applicant stated that after receiving the determination from the Respondent's council, he was of the opinion that there were a number of procedural irregularities which were committed by the Respondent in the investigation and determination of the complaint that had been made against him. He filed a court application under case number HCH 4677/22. The matter was set down on 5/3/2025, on which date respondent was in default. Despite the Respondent's absence, the court was of the opinion that the application could not be granted in the form it was in. He opted to withdraw the court application. Having decided to re-file the application, he is now ought of time and seeks condonation.

Applicant addressed the relevant factors that may be considered in such applications. He indicated that the delay in seeking review arose from the withdrawal of the application that had been filed timeously. He also indicated that the delay in seeking condonation was occasioned by the need to seek instructions from counsel on the issues the court had raised that led to him withdrawing the application. On the prospects of success, applicant submitted that he has very high prospects. He alleged bias on the part of the person presiding over the tribunal. He alleged that the respondent never bothered to identify the provision of the Legal Practitioners Act which he was alleged to have violated. He alleged that the respondent held him accountable for irregularly commissioning on affidavit yet it was another Legal Practitioner who had done so. In addition he was also being asked to account for complainant's wife's issues. In his view if there was no bias, the investigations ought to have been redirected to the proper issue and subject.

Applicant pointed out that the Respondent's determination included issues on which he was not given opportunity to respond. He was also blamed for undertakings made by his client. Applicant further alleged gross irregularities in the proceedings and stated that the charges he faced were framed by the complainant and not by the Respondent. Further that he was found guilty of a charge that he was not charged of.

The application was opposed. The Executive Secretary of the Respondent deposed to the opposing affidavit. He stated that the delay in issue is inordinate as it is over thirty-three (33) months. Further that applicant is out of time because he had pursued a defective application and did not state the circumstances of the defect, what the issues brought to his attention were and who was to blame for them, neither did he state when he first learned about the issues. The deponent to the opposing affidavit, Mr Mapara, stated that applicant did not adequately explain the delay between the time he realised the defect and the bridging of the present condonation application. He further submitted that there are no prospects of success as the allegations of bias are fanciful and entirely speculative. He submitted that the allegations of procedural irregularities are baseless as the Secretary was under no obligation to charge the Applicant, but to conduct an investigation on allegations of unprofessional dishonorable or unworthy conduct.

It was further stated for the Respondent that without the details of the issues that beset the first application, the court cannot begin to inquire whether or not the reason for the delay is a satisfactory one. Mr Mapara pointed out that in response to the initial application Respondent

had taken issue with the non-compliance with Rule 62 (2) of the High Court Rules on 26 July 2022. If that was the basis of the withdrawal of the initial application, the Applicant ought to explain why he took no action from July 2022 when the defect was brought to his attention. The application for condonation was only filed on 15 April 2025.

Mr Mapara pointed out that the Legal Practitioner involved in the issue for which Applicant said he was not responsible was charged, convicted and sentenced for professional misconduct and the allegations of bias cannot stand. He disputed that there were issues introduced at the determination stage. He also pointed out that Applicant had an obligation to follow up his client's undertaking as it was to his benefit.

Where a litigant realizes that he has not complied with a rule of the court, he must apply for condonation without delay. If the litigant does not seek condonation without delay, he is required to give an acceptable explanation, not only for the delay in the filing of the application for condonation, but also in seeking condonation. See *Ngirazi* v *Saurosi + Another* HB84/18; *Viking Woodwork (Pvt) Ltd* v *Blue Bells Enterprises* (Pvt) Ltd 1998 (2) ZLR 249. The applicant's failure to seek review timeously is explained as having been caused by the filing of a defective application. Applicant has always been legally represented. After filing an application for review timeously, the notice of opposition brought to his attention irregularities that were in his papers on 26 July 2022. Applicant chose to ignore the issue until the matter was set down for hearing in March 2025.

The court pointed out defects in the applicant's papers and he ended up withdrawing the application. Applicant does not explain why he chose to ignore the issues raised in the notice of opposition. Neither does he explain what the court specifically stated was wrong with his papers. In the absence of an explanation of his inaction between 26 July 2022 and 5 March 2025 there is no reasonable explanation for the delay. Moreover, applicant did not file the application immediately after withdrawing the defective one. The withdrawal was on 5 March 2025. The present application was only filed on 15 April 2025. His explanation was that he sought legal opinion. There is no evidence of when that opinion was sought. He says it was rendered on 21 March 2025. He thereafter had a meeting to clarify issues in the opinion. There is no other explanation of what transpired between 21 March 2025 and 15 April 2025 except that he

instructed his lawyer to draft this application. The date the instructions were given is not stated. In *Zimslate Quartzite (Pvt) Ltd and ORS* v *CABS SC34/17* it is stated.

> "An applicant, who has infringed the rules of the court before which he appears, must apply for condonation and in that application explain the reasons for the infraction. He must take the court into his confidence and give an honest account of his default in order to enable the court to arrive at a decision as to whether to grant the indulgence sought. An applicant who takes the attitude that indulgencies, including that of condonation, are there for the asking does himself a disservice as he takes the risk of having his application dismissed".

In my view, taking the court into his confidence and giving an honest account of the default in the circumstances of this case required applicant to account for everyday between the withdrawal of the initial application and the filing of the present one. There are a lot of gaps in the Applicant's explanation. I am not persuaded to exercise my discretion in applicant's favour.

It is trite that where no acceptable explanation for non-compliance has been given, an applicant for condonation must show very good prospects of success. See *Mahachi* v *Barclays Bank of Zimbabwe SC 6/06*. Applicant has referred to cases in which condonation was granted. He however has not cited any case in which the arguments he proffers were upheld on review. The fact that condonation was granted in a similar matter does not mean that they are very good prospects of success on review. The good prospects are not on the granting of condonation. They are supposed to be good prospects of the review application succeeding. Applicant has not discharged the onus of showing such very good prospects of success on review.

Accordingly, the application fails.

I make the following order.

The application be and is hereby dismissed with costs.

MAXWELL J: …….

Mutendi Mudisi and Shumba, applicant's legal practitioners.